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WHAT OF OUR SCHOOLS?

Use of Trust Assets

To the Editor of THE JEWISH CHRONICLE

SIR.—Your leader "What of our Schools?" (in your issue of last week) rightly draws attention to a matter of great importance to the Jewish community. But your reference to the efforts of the Catholic and Liverpool and Manchester communities casts reflections on the London Board of Jewish Religious Education which appear to be unfair and unjustified.

In your issue of October 30, 1953, you reported a letter from Dr. S. Schonfeld to the Chief Rabbi in which he had refused Rabbi Brodie's invitation to a conference, stating specifically that any further negotiations with the London Board were futile and that the only persons of any real status in connection with voluntary schools and their funds were the former Trustees. He went on to say that he had in fact submitted a memorandum of a suggested scheme to the Trustees of the Jewish Free School.

It would seem that the Trustees of the funds were quite prepared to hand over their assets to a governing body on which

the London Board and the Jewish Secondary Schools Movement would have representation subject to the approval of a scheme by the Minister of Education, and that the London Board, with the Chief Rabbi's approval, made strenuous efforts to formulate a scheme which it was considered would be for the benefit of the community in general. The Board having met with opposition and objections which, with the utmost good will, it was unable to overcome, there could be no alternative but to leave the matter in the hands of the Trustees, who are no doubt fully acquainted with the views of the Chief Rabbi on both the schemes which have been submitted.

The London Board has obviously no power to force the issue and any attempt to do so would be both ill-advised and futile.

The community must share your natural anxiety that proper use should be made of the Trust assets at the earliest possible moment, but having regard to the Trustees' own negotiations, it is difficult to see what further or other reply the Chairman of the London Board could have given to the questions put to him at the last meeting.

I. H. LEVY.
1 Laurence Pountney Hill,
Cannon Street, E.C.4.

DISPOSSESSION OF ARABS IN ISRAEL

High Court Judgment

To the Editor of THE JEWISH CHRONICLE

SIR.—The Supreme Court of Israel, sitting as the High Court of Justice, has recently given a judgment with regard to the dispossession of an Arab cultivator in Israel, which has aroused great interest in the country and deserves attention outside the country. It should be explained that it is the function of the High Court to consider applications for writs of the English writ of Mandamus, calling on an officer of the Government to show cause why his action, inaction, or order should not be cancelled or corrected as being contrary to law and an abuse of power. The High Court has in numerous cases used its authority to check action by the military or civil power in Israel against Arabs which they held to be a violation of the principle of justice or the provisions of Israeli legislation.

The application in this case was made on behalf of an Arab resident in an Israeli village whose lands had been confiscated and registered in the name of the Development Authority of the Government. Before the State was created, the Arab was registered in the official land books as the owner of the lands, and he, in fact, cultivated them till 1950. The village was declared a restricted military area, and though the lands were excluded from the restricted area, they could not be reached by the villagers without a military permit. During the first year after the establishment of the State, the military governor gave the permit. But after 1950 he refused it.

Meanwhile, new kibbutz took possession of part of the village lands, but not including the applicants' holding. In 1953 a notice appeared in the official Gazette stating that, since certain lands were not in the possession of their owners on April 1, 1952, and were being used, or would be required, for purposes of development settlement, they were expropriated in accordance with an Israeli Act passed in that year. Thereupon the Registrar straightway changed the registration and vested the lands in the Development Authority. The notice in the Gazette was the only intimation that the Arab land owners received of the expropriation.

The applicant was granted an Order Nisi by the High Court. But when the case came up for argument before the Supreme Court, the order was discharged and the Government title confirmed. The Attorney-General argued that there was under the law a valid obligation upon the Minister to give notice to the owners of the lands, and the mere signing of the Certificate of Expropriation by him was sufficient evidence that the necessary conditions existed. The Minister had complete and absolute discretion with which the Court could not interfere.

For the applicant it was argued that the issue of a certificate was a quasi-judicial act and therefore the parties concerned, i.e., the owner of the land, should have been given an opportunity to appear and to state his case. He argued also that the Arab had constructive possession, although he was unable because of a military order, to work the land. The Court stated that in their opinion it would have been preferable if the parties had been given the opportunity of presenting their case to the Minister, but there was nothing in the law to impose any such obligation. And they rejected the plea of constructive possession.

A much-respected commentator in the JERUSALEM POST has courageously criticised the judgment of the Supreme Court,

taking the risk of being charged with contempt of court. He points out that it was not the fault of the Arab owner that his lands were not worked in April, 1952, and that he wanted his lands as any man wants his own land. Although the expropriation law makes no distinction between Jew and Arab, it was obvious that the action could not have happened to an Israeli Jew, but only to an Israeli Arab. Is it altogether surprising that there are violent incidents in Israel if an Arab citizen is treated with such harshness, and the Courts find themselves unable to redress a just grievance?

N. BENTWICH.
London, N.W.3.

Points from Letters

UNITED SYNAGOGUE PRESIDENT

The Hon. Ewen Montagu was not quite accurate when he stated at the last meeting of the Council of the United Synagogue (reported in your issue of April 12) that he was the youngest President of the United Synagogue to be elected (on his 33rd birthday). The late Mr. Lionel de Rothschild, who was President of the Great Synagogue, was elected President of the United Synagogue in 1918, at the age of 36, and he held this position for 24 years until his death in 1942 at the age of 60.—S. KLEIN, 130 Cheviot Gardens, N.W.2.

The Technion Society of Great Britain and the British Committee for Technical Education in Israel have moved into new headquarters at 39/41 Jagger Street, Wignore Street, W.1. The new telephone number is Hunter 0356/7.

THE Marylebone Jewish Society was addressed by Mr. Harry Lewin, Treasurer of the Magic Circle, last week, on "Psychological Magic."

HEBREW COURSES IN ISRAEL

Dates of Kibbutz-Upanim

To the Editor of THE JEWISH CHRONICLE

SIR.—The attention of your readers is drawn to the special facilities offered to immigrants and tourists to Israel to learn Hebrew in congenial surroundings at the Upanim (residential Hebrew courses in Israel).

There are three main types of Upanim, the Kibbutz, the College and the Special—the courses are of six months' duration. The particular attraction of the Kibbutz Upanim is the arrangement whereby participants earn their keep, and incidental expenses by working half-day on the kibbutz (44 hours only).

The Upanim are arranged to meet the standards of the English-speaking people. Several hundred students have already passed through these Upanim and have acquired a working knowledge of Hebrew which enabled them to obtain suitable employment. It is also a very successful transitional stage for those without means. Furthermore, the conducted trips to different parts of the country and a varied cultural programme afford the newcomer an insight into the background of the country.

The next Kibbutz Upanim are due to start on May 2 at Haseleim; June 15 at Shifayim; and on July 15 at Maaleh Hahamisha.

Inquiries and applications should be addressed to the Aliyah Office, 77 Great Russell Street, W.C.1, or to Patwa, 65 Southampton Row, W.C.1.

M. WOISLAWSKI,
Secretary, Aliyah Office,
Great Britain and Ireland.

BEHAVIOUR AT FUNERALS

Hurt Feelings of Mourners

To the Editor of THE JEWISH CHRONICLE

SIR.—Your correspondent, Mr. S. Miller (in your issue of April 2), deplores the lack of good manners by some of our coreligionists at theatres and other places of entertainment, but he characteristically refrains from referring to their churlish behaviour in other places.

Mr. Miller makes a passing reference to the perennial subject, "indecorum in the House of Prayer," but he says nothing of the sacrilegious acts committed in the House of Life, where one feels outraged by those who congregate outside the mortuary chapel before the appearance of the officiant and, later, in the procession to the graveside, carry on their conversation with utter disregard of the solemnity of the occasion, or of the feelings of the mourners.

This evil might be mitigated were the superintendents of cemeteries held responsible for the maintenance of decent behaviour at funerals.

Bad manners are to be expected in the ill-bred, but when manifested in holy places they are attributable to Godlessness.

H. L. DAVIS.
116 Sutherland Avenue,
London, W.9.

Dr. L. COMYNS, J.P., was recently elected a councillor of the Borough of West Ham.

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DISTRIBUTION OF RECOMPENSE

Broken Promises Alleged

To the Editor of THE JEWISH CHRONICLE

SIR.—In your leader of March 26 you rightly state that the Jews from Germany, whose property was the first to be taken and whose cultural institutions were the first to be destroyed, have a special claim for material and cultural rehabilitation. This was recognised by the President of the Claims Conference, Dr. Nahum Goldmann, who, on July 25, 1952, promised our President, Rabbi Dr. Leo Baek, in writing, and repeatedly in New York, Paris, and London, that our Council would receive a share of the Conference award. The same promise was made by other leading representatives of the Conference.

These promises have now been broken. The funds allotted by the German Government for the explicit purpose of relief and rehabilitation of victims of Nazism are being spent by the Conference under the virtual exclusion of the special needs of the Jews from Germany and without any co-operation with them.

A spokesman of the Conference suggested that this action was taken after project submitted by our Council had been thoroughly investigated. This is incorrect. Some of our affiliated groups report that their social projects have not even been examined yet. Besides, the people appointed by the Conference to investigate the projects submitted are the officials of the very organisation to which the bulk of the Conference funds is to go, i.e., the American Joint Distribution Committee, which thus acts as expert, claimant, and judge.

According to the same spokesman, the Jews from Germany wish to receive a higher standard of assistance than other Jewish victims of Nazism. I cannot but call such an allegation grossly misleading. The German funds for which the Conference act as trustees are not meant to relieve the existing Jewish organisations of their current liabilities. These additional funds should be used for additional welfare purposes, and in the first instance for the care of the aged among victims of the Nazis. We have submitted a comprehensive programme on these lines, whereas we are not aware that the Joint, to whom practically all funds available in the current year are handed over, has made any detailed suggestions to meet these needs.

As to the further contention of the spokesman that our Council's application for Britain was overlapping with the proposed refugee programme to be carried out from the funds of the Jewish Trust Corporation, these funds might be just sufficient to accommodate 100 old and infirm people in the next few years. Statistics at our disposal show that the number of applicants is more than five times higher. Besides, two-thirds of the proceeds of the J.T.C. go to the Joint and the Jewish Agency and are not spent in Israel.

The decision of the Claims Conference to exclude our Council, the representa-

tive body of Jews from Germany, from the allocation of the German global recompense adds another chapter to the humiliating story of how the survivors of a once leading Jewish community are treated by certain Jewish circles: From the proceeds of the countless and communal Jewish property in Germany, built up by German Jews and now collected in the U.S.A. Zone by the Jewish Restitution Successor Organisation, the Jews from Germany are not to receive anything either, a fact so aptly criticised in your paper recently. Dr. Baek has therefore declared our Council's withdrawal from that organisation.

As to the Claims Conference, you will agree, Sir, that we would not act in conformity with the responsibility we feel towards our brothers in need if we accepted such measures as final.

W. BRESLAUER,
Vice-President,
Council for the Protection
of the Rights and Interests
of Jews from Germany.
London, N.W.3.

ACHAD HA'AM'S MORAL OUTLOOK

His Doctrine Challenged

To the Editor of THE JEWISH CHRONICLE

SIR.—May I complete your report of my lecture on Achad Ha'am, which appeared in your issue of last week? I explained in some detail that (1) however much we may admire Achad Ha'am's moral outlook, we must realise that the theoretical foundation of his doctrine is both false and dangerous.

(2) This foundation is the conventional sociological one, and it cannot yield the absolute (e.g., absolute justice, or the absolute commitment of Jewry to the moral law) assumed by Achad Ha'am. Whence the dilemma: we can accept his general theory, in which case we have to let go his moral outlook; or accept his moral outlook, in which case his general theory must be dismissed.

(3) The generation brought up on Achad Ha'am accepted his general theory. (4) Achad Ha'am himself stuck to his moral outlook, and on the occasion of one of the early instances of so-called reparation published a letter to the press (which I read in my lecture) deploring and repudiating the new spirit, and ending with the Talmudic sentence: "If this is the Messiah, let him come and may he die!"

(5) Achad Ha'am added fuel to the moral treason of the Jewish intelligentsia by giving an account of Judaism as resting on a justice severed from love: and

(6) Achad Ha'am effectively led to the identification of the God of Judaism with the "national creative power" of Jewry or even the "national will" to survive.

(7) Thus, ironically enough, Achad Ha'am's theories promoted the subordination of our Council, the representa-

Continued at foot of next column

TRAVEL NOTES

More Group Holidays

By "Green Flag"

Mr. Norman Sosner, of Apal Travel, Ltd., 50-51 High Holborn, W.C.1, sends me his new brochure which includes details of many interesting group holiday opportunities. They stay in Greece, cruising for eight days in the Adriatic, and a number of free-lance holidays on the French Riviera. For Orthodox Jewish clients, Mr. Sosner has prepared a special leaflet setting forth a list of holidays in which kosher food is available. Mr. Sosner also informs me that there are still a few vacancies for the Mizrahi air tour to Israel which he is organising for 16 days from May 5 at the inclusive cost of £155.

From Mr. A. M. Morley, of the British Oak Society, 109 Stamford Hill, N.16 (Stamford Hill 4540), comes a summary of his organisation's plans for two Continental holidays this year in Switzerland and France. The Oak Holiday Centre in Switzerland is in the mountain village of Morgins, near the French border, situated at a height of 4,000 feet. The duration of the stay is from July 27 to August 26, and British Oak has been allotted 25 vacancies for children of both sexes between 8 and 12 years of age. The cost of this holiday is £25 for the whole period, exclusive of fares. The French holiday, which is in the nature of a summer school, is being held at Versailles in the house where Louis XV. was born, now an Oak house. This summer school is open to youngsters of both sexes between the ages of 14 and 17. Bookings are for fortnightly periods from August 7 to 16, 16 to 26, and 26 to 30. Organised coach tours, visits to places of historic interest, suitable theatrical entertainment, etc., have been planned, and are included in the charge of £25. As in the case of the Morgins holiday, fares are extra, but special fare concessions will be obtained in both cases. Both centres are run on strictly kosher lines and all parties from this country will be under the care and supervision of experienced youth welfare workers, who will accompany the children on the outward and return journeys.

Bachad Plans

Mr. M. Kopfshtein, of the Brit Cholutim Daitim (Bachad), of 24 Tottenham Court Road, W.1 (Langham 9876), sends me the illustrated brochure of his organisation's holiday schemes, which comprise a summer school from July 30 to August 13 at Howden, Cumbria; Tisbury, Devon; a Continental summer school at Slagelse, Denmark, from August 2 to 15; and the Summer Hachshara Scheme at the Northern Bachad Farm, Otterton, Cheshire, from July 11 to September 4 at a maintenance fee of only £2 per week. The age limits for these group holidays are from 11 to 25. One of the largest parties ever to be organised by air to Israel leaves by El Al Constellation aircraft on May 3 from London. The booking agents are Isral Tours of 40 Dean Street, W.1.

Cut have been made by British and French Railways to enable the return fares from London to Paris to be cut by as much as £1 10s. However, the new fares are still round about the same level as, and in some instances even higher than, the return fares by air. The "tourist" off-peak fare is only £11 return.

Continued from previous column
tion of religion and morals to politics against which the Hebrew Bible is one continuous protest, and which has been made, alas, by so many even of our religious leaders the outstanding mark of the Judaism of our time.

These, I think, were my principal points in addition to those you mentioned. I may now add what I did not know last week, that all that I had to say on the subject is confirmed by an article of the well-known young Hebrew writer and novelist, Gideon Katznelson, published in the supplement of the Hebrew, HAARETZ, of April 2. I direct to this article the careful attention of anyone who is still under the impression that there is in the mind of the young Jew brought up on Achad Ha'am's principles any inherent connection between the State of Israel and what is commonly understood by the word "Judaism." It may be that neither of them is any the worse for the dissociation; but the fact should be recognised and its consequences drawn. LEON ROTH.

3 Merton Street,
Newham, Cambridge.

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